

Section one hundred and fifteen (which relates to the minimum number of members with which a company may continue to carry on business).

Paragraph (iv) of section one hundred and twenty-nine (which makes the reduction of the number of members of a company below the minimum a ground for the winding up of the company).

CHAPTER 26.

An Act to provide a Special Grant for the purpose of improving Medical Service in the Highlands and Islands of Scotland, and for other purposes connected therewith. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) In every financial year there shall be paid out of money to be provided by Parliament the sum of forty-two thousand pounds, which shall be called the Highlands and Islands (Medical Service) Grant, and shall be paid to a separate fund to be called the Highlands and Islands (Medical Service) Fund. Highlands and Islands (Medical Service) Grant.

(2) The Highlands and Islands (Medical Service) Fund shall, subject to such regulations as may be made by the Treasury with respect to accounts, audit, and accumulation of the fund, be administered and applied by the Highlands and Islands (Medical Service) Board (hereinafter called the Board) appointed under this Act, in accordance with a scheme or schemes to be prepared by them and approved by the Secretary for Scotland with the consent of the Treasury, for the purpose of improving medical service, including nursing, in the Highlands and Islands of Scotland, and otherwise providing and improving means for the prevention, treatment, and alleviation of illness and suffering therein.

2.—(1) For the purposes of this Act, it shall be lawful for His Majesty, by warrant under his sign manual, to appoint a board consisting of not less than five and not more than nine members, one of whom shall be a woman, to be called the Highlands and Islands (Medical Service) Board. One of the members of the Board shall be appointed by His Majesty to be chairman of the Board. Appointment of Board.

(2) The Board may act by any four, or, if the total number of the Board is six or less, by any three of their number, and notwithstanding any vacancy in their number.

(3) The Secretary for Scotland may appoint a secretary to the Board and the Board may, with the consent of the Treasury

as to numbers, appoint and employ such officers and servants for the purposes of this Act as they think necessary, and may remove any officer or servant so appointed or employed, and there shall be paid to the secretary, officers and servants such salaries or remuneration as the Board, or in the case of the secretary, the Secretary for Scotland, with the consent of the Treasury, may determine.

(4) The salary of the secretary and the salaries or remuneration of the officers and servants, and any expenses incurred by the Board in the execution of their duties under this Act, to such amount as may be sanctioned by the Treasury, shall be defrayed out of moneys provided by Parliament.

(5) The Board shall make an annual report of their proceedings to the Secretary for Scotland, and that report shall forthwith be laid before Parliament.

Supplemental provisions with respect to schemes.

3.—(1) Provision shall be made by scheme under this Act for the conditions under which any money from the Highlands and Islands (Medical Service) Fund placed at the disposal of local authorities, insurance committees, district nursing associations, or other bodies or persons or any joint committee of local authorities or insurance committees or of local authorities and insurance committees is to be applied by them, and as respects any money from that Fund which is to be applied by the Board, as to the purposes for which it is to be so applied.

60 & 61 Vict.
c. 38.

(2) Where under any such scheme any money is to be applied by the Board for the purpose of building houses for medical practitioners or nurses, or for the purpose of building hospitals, or for any other purposes for which land may be required, the Board, if the money is to be applied by them, shall, if the scheme so provides, have the like powers for those purposes with respect to the acquisition, holding, and disposal of land as authorities under the Public Health (Scotland) Act, 1897, have for the purposes of that Act and that Act shall be construed accordingly.

(3) Where under any such scheme any money is to be applied by a local authority for any purpose, that authority shall have all such powers for the purpose as the scheme may provide, and, if the scheme so provides, any powers vested in a local authority of acquiring land, or erecting buildings, or borrowing on the security of any rate for any purpose, shall be extended so as to include the purposes of the scheme, and any Act conferring any such power shall be construed accordingly.

(4) Any scheme under this Act may be revoked or varied by a scheme prepared and approved in like manner as the original scheme.

(5) The provisions of section fifteen of the Public Health (Scotland) Act, 1897, with respect to the removal of a medical

officer by or with the sanction of the Local Government Board for Scotland shall, within the areas specified in the schedule to this Act, extend to any medical practitioner appointed by a parish council for the purpose of any duties of that council.

4. The provisions of section fifteen of the Local Government (Scotland) Act, 1908, with respect to the transfer of hospitals, sanatoria, or houses of reception, and land connected or used therewith, shall apply with respect to transfers to the Board as they apply with respect to transfers to a local authority, with the substitution of the Secretary for Scotland for the Local Government Board for Scotland, and shall be extended so as to include power to transfer to the Board any building or land for any purposes for which money is to be applied by the Board.

*Gifts to Board.
§ Edw. 7. c. 62.*

5. In this Act—

Definitions.

The expression “Highlands and Islands” means the areas specified in the Schedule to this Act.

The expression “local authority” means county councils and any authority under the Public Health (Scotland) Act, 1897, and parish councils, school boards, and secondary education committees, and includes any joint committee of local authorities, and local authorities and insurance committees shall have power to appoint joint committees for the purpose of this Act.

6.—(1) This Act may be cited as the Highlands and Islands (Medical Service) Grant Act, 1913.

*Short title
and duration.*

(2) The powers of the Board under this Act shall, unless continued by Parliament, cease on the thirty-first day of December nineteen hundred and seventeen, and, in the event of their so ceasing, His Majesty may, by Order in Council, provide for the administration and application of the Highlands and Islands (Medical Service) Fund, and for the exercise and performance of any powers and duties under this Act or under any scheme made under this Act by such other persons, bodies or local authorities as His Majesty thinks fit to substitute for the Board.

SCHEDULE.

Section 5.

HIGHLANDS AND ISLANDS.

The counties of—

Argyll;

Caithness;

Inverness (excluding the Burgh of Inverness);

Ross and Cromarty ;
Sutherland ;
Orkney ; and
Zetland.

The Highland District of the County of Perth as presently
constituted in terms of the Local Government (Scotland) Act,
1889.

CHAPTER 27.

An Act to consolidate, simplify, and amend the Law
relating to Forgery and kindred Offences.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice of the Lords Spiritual and Temporal, and
Commons, in this present Parliament assembled, and by the
authority of the same, as follows :

Definition of
forgery.

1.—(1) For the purposes of this Act, forgery is the making
of a false document in order that it may be used as genuine,
and in the case of the seals and dies mentioned in this Act
the counterfeiting of a seal or die, and forgery with intent to
defraud or deceive, as the case may be, is punishable as in this
Act provided.

(2) A document is false within the meaning of this Act if
the whole or any material part thereof purports to be made by
or on behalf or on account of a person who did not make it nor
authorise its making ; or if, though made by or on behalf or on
account of the person by whom or by whose authority it purports
to have been made, the time or place of making, where either
is material, or, in the case of a document identified by number or
mark, the number or any distinguishing mark identifying the
document, is falsely stated therein ; and in particular a document
is false :—

- (a) if any material alteration, whether by addition, insertion,
obliteration, erasure, removal, or otherwise, has been
made therein ;
- (b) if the whole or some material part of it purports to be
made by or on behalf of a fictitious or deceased
person ;
- (c) if, though made in the name of an existing person, it is
made by him or by his authority with the intention
that it should pass as having been made by some
person, real or fictitious, other than the person who
made or authorised it.

(3) For the purposes of this Act—

- (a) it is immaterial in what language a document is ex-
pressed or in what place within or without the
King's dominions it is expressed to take effect ;